

Court No. - 32

Case :- WRIT - C No. - 17346 of 2022

Petitioner :- Jagdish Singh

Respondent :- Dakshinanchal Vidyut Vitran And Another

Counsel for Petitioner :- Kalpana Singh

Counsel for Respondent :- Baleshwar Chaturvedi

Hon'ble Mrs. Sunita Agarwal,J.

Hon'ble Vikram D. Chauhan,J.

The petitioner herein is raising a dispute with regard to the demand notice dated 21.10.2021 with the submission that the assessment of electricity dues made by respondent no. 2 is incorrect.

Sri Baleshwar Chaturvedi learned Advocate has put in appearance of behalf of the respondents.

The grievance being raised by the petitioner herein can very well be considered by respondent no. 2 namely the Executive Engineer, Dakshinanchal Vidyut Vitran Nigam Limited, Electricity Distribution Division-Sirsaganj, District Firozabad in view of the Clause 6.5 of the U.P. Electricity Supply Code, 2005.

A fresh representation shall be filed by the petitioner alongwith the copy of this order within a period of two weeks from today.

In case, such a representation is made, respondent no. 2 shall be under obligation to take an expeditious decision, in accordance with law, preferably, within a period of three weeks, thereafter.

The request of the petitioner for repayment of outstanding dues in easy installments shall also be considered in accordance with the Clause 6.14 of the Electricity Supply Code, 2005.

A reasoned and speaking order, in accordance with law, shall be passed by respondent no. 2, the Executive Engineer concerned.

For a period of six weeks from today or till the fresh decision is taken by the respondent no. 2 namely the Executive Engineer, Dakshinanchal Vidyut Vitran Nigam Limited, Electricity Distribution Division-Sirsaganj, District Firozabad, no coercive measure shall be taken against the petitioner.

The writ petition is, accordingly, **disposed of**.

Order Date :- 21.6.2022

Brijesh